

CHAPTER 3

Jus ad Bellum #2

Non-Classical Wars

“[T]he injustice of the opposing side ...
lays on the wise man the duty of waging wars.”

Augustine¹

The classical account of *jus ad bellum*, developed last chapter, cannot be considered complete. For it deals solely with standard inter-state conflicts, like World War II or the Persian Gulf War, leaving out such important intra-state conflicts as civil wars. Furthermore, what happens when the aggressor is not another state, nor even a rival internal group striving to establish its own state but is, rather, something like a terrorist group? Finally, how is the so-called “aggression paradigm” consistent with such things as anticipatory attack and humanitarian intervention? To respond meaningfully to such important issues, we must amend the standard account of *jus ad bellum*. But we must stress, crucially, that *all the forthcoming amendments have to do with the just cause requirement*. All the other rules for a justified resort to force—right intention, proportionality, etc.—still hold straightforwardly for the four revisions which follow. The amendments are all in terms of *carefully expanding the just cause* for resorting to armed force beyond the classical scope of responding to interstate aggression. I should add that, in this chapter, we are squarely within just war theory; international law is profoundly unclear about these cases beyond a general norm to get prior United Nations Security Council (UNSC) endorsement.²

Non-State Threats, 9/11 and the Iraq Insurgency

Because of September 11, 2001, the world is wary of attacks by so-called non-state actors, particularly terrorist groups. What is terrorism? Terrorism is a tactic; it is not itself an actual, full-blown “ism” (i.e., a coherent, developed political ideology with a systematic view of how social institutions should be structured). There were radicals in the 1800s who referred to terrorism as a full-blown “ism”—some writing passionate, bizarre manifestos about random violence and the subversion of order—but they were mistaken. *Terrorism is a tactic used in the service of some other “ism.”* In the case of

the nineteenth century radicals it was anarchism (i.e., the idea of society without a coercive governing structure—like the state).³ Terrorism, defined, is the use of random violence—especially killing force—against civilians with the intent of spreading fear throughout a population, hoping that this fear will advance a political objective. Crucial to terrorism is not just the deed itself but also what some have called “the propaganda of the deed.” Since terrorists want to spread fear, it is vital that their deed not only be terrible but be so terrible that it gets covered by media, and word and image about the threat become disseminated throughout the population. The 9/11 attacks, e.g., were clearly motivated not just by the desire to kill civilians but also by the drive to maximize the propaganda value of the high-profile attacks.⁴

Though we might imagine cases where terrorism gets used by other “isms,”⁵ most often it occurs historically in three contexts. The first is as a tool of authoritarian regimes to crush their own populations into submission: the dictatorship under Robespierre, during the French Revolution, established the “Reign of Terror” (which I believe is the root source of the word “terrorism” in Western vocabularies). The Reign of Terror, 1793–94, was when “Enemies of the Revolution” were rounded up and, in a very deliberate, public, propagandistic way, given their own special “close shave” by Mme. La Guillotine. At the Terror’s peak, Robespierre had 40,000 people guillotined in just one month.⁶ The second context is when terrorism gets used as a tool of extremist outsiders against representative regimes. In this context—which is obviously where the 9/11 attacks fit—terrorism is a violent attempt to circumvent such democratic processes as rational persuasion, coalition- and consensus-building, the rule of law, and the will of the majority expressed in free elections. The terrorist seeks to short-circuit all these things and simply inflict his will on a population, probably because he knows his extreme beliefs would have no chance of achieving mainstream success. He cannot persuade people, so he seeks to coerce them. The terrorist, in this sense, is actually much like a tyrant—but without the power and control the tyrant already has. The terrorist is a tyrant-in-waiting, and he dreams of becoming someone like Robespierre, who is able to radically refashion all of society from the top-down through what he views as the cleansing power of violence. The personnel of al-Qaeda fit this mould precisely.⁷

The third common context of terrorism is as a tool in guerrilla warfare. Guerrilla warfare refers to the use, by at least one side, of irregular military tactics against the standard tactics, and regular forces, of the other side. Often, guerrilla warfare is resorted to by weaker forces against more powerful ones: the weaker side knows it will be crushed by the stronger should it engage the stronger in open, classical combat. Instead, the weaker side uses irregular tactics like surprise attacks, traps and ambushes, quick strikes followed by rapid disengagement and disappearance, assassinations, clandestine and camouflage operations, sabotage and even terrorism. Consider the ongoing insurgency in Iraq. The insurgents realize that directly engaging US

forces in open warfare—in a so-called “set-piece battle,” for instance—would result quickly in their own annihilation. So they refuse to engage, instead: planting landmines in the road to blow up US soldiers as they drive by; launching ambush-style missile attacks on US helicopters when they are in the middle of loading and are thus “sitting ducks”; hiding amongst civilians and then blowing themselves up when US soldiers come close by on daily patrol; and so on. Now, such actions don’t count as terrorism, because they target military forces. How can terrorism come into play in a guerrilla war? Well, the guerrillas might view it in their interests to spread terror throughout the civilian population—even if it is their own. Why? Consider again Iraq. The Americans, and American-supported Iraq government, are in control (or, at least, they have more control than the insurgents want). The insurgents oppose all this. Using terrorism, they think, will challenge that control—making the authorities look ineffectual and incapable of ruling. So the insurgents randomly blow up civilians, striking especially during religious observances when people’s guards are down. The people, scared and exhausted by the violence, will then push for political change, and the insurgent forces will step in to fill the gap left by the vacating Americans. That is their theory, anyway. And it shows the extreme extent to which these ruthless insurgents are willing to go: gladly killing their fellow citizens to advance their own partisan objectives of winning power for themselves.⁸

Whether terrorism as a tactic is consistent with any “ism” or “ocracy” is a difficult and delicate debate. Fortunately, I don’t have to resolve it here. From just war theory’s point of view, *terrorism is always an impermissible tactic*, since it involves the deliberate killing of innocent civilians—which right-thinking people view as murder. We’ll talk more next chapter about just war theory’s ban on deliberately killing innocents—what does it mean, what justifies it, what consequences does it have, and so on. For now, we merely diagnose terrorism for what it is and note how, clearly, it can pose a dangerous non-state threat to the existence and peace of legitimate states (especially in the second context).⁹

Terrorists are not the only non-state threats which states confront. Mercenaries, which used to be major threats in this regard, continue in some parts of the world to be of real concern. Mercenaries are soldiers who do not have a political objective, only a financial one: they offer their killing services to the highest bidder, and have no political objective of their own. Finally, in some parts of the world, Mafia-style criminal gangs, and/or drug cartels, can pose enough of a threat that the state(s) in that region respond with force that is warlike in scale and seriousness. Consider Colombia, in South America. For a long time, the government and the cocaine cartels have fought something very much like a war. But the cartels don’t have a political or state-related objective: they only want to be left alone to profit from the drug trade. The government, however, is unwilling to let them, since cocaine is everywhere illegal. What has made their conflict warlike has been the scale and

ferocity of the fighting, along with a combination of the weakness of the Colombian state and the strength and wealth of the cartels.¹⁰

Usually, non-state threats are best dealt with using measures *short* of war. Which ones are these? All the tools of domestic law enforcement: surveillance; information-gathering; investigation; “making a case”; infiltration; strong border controls; drug and crime “stings” and “busts”; a robust and effective police force; an efficient and non-corrupt legal system; and a sustained political commitment to weed out the threat. Sometimes, however, these measures might not be enough, and the more extreme measures of war-fighting can be contemplated. This might happen when the state itself is weak, perhaps because it is generally under-resourced owing to the poverty of its people, or else owing to systematic corruption or inefficiencies in its own structure. Both are true of Colombia. The other possibility is that the non-state threat is abnormally well-endowed, and represents a genuine state-scale security threat, as in the case of the Colombian cocaine cartels and the terrorist group al-Qaeda, which is flush with the wealth of ex-Saudi billionaire Osama bin Laden. Al-Qaeda also received expert military training back in the 1980s, when America was keen to supply and educate the USSR’s enemies during Russia’s aggressive war against Afghanistan.¹¹

There is very little amendment to the just cause rule which is required to deal with these threats. Why? Because there is nothing, in just war theory or international law, which says that aggression can only be committed by states. Aggression, recall, is the use of armed force in violation of a legitimate state’s right to either territorial integrity or political sovereignty. And states have these rights insofar as they help realize the human rights of their people. Ultimately, then, *aggression is the violent violation of human rights*. So either states or non-state actors can commit aggression, which we have seen is what roots a morally justified resort to war.

Consider the 9/11 attacks, which were clear instances of aggression. They involved the use of armed force, first to hijack the planes and then to use the planes themselves as high-powered missiles. They violated America’s right to territorial integrity, in so far as they were lethal attacks on American soil, having penetrated American airspace. And they violated America’s right of political sovereignty, by attempting to force serious foreign policy changes upon a freely-choosing population. America, moreover, was in 2001 a legitimate state: by being widely recognized by the international community; by enjoying widespread, uncoerced social peace; by making serious efforts at the realization of its citizens’ human rights; and by not—at that time—violating the rights of other states and peoples. So 9/11 was an act of aggression, very reminiscent of Pearl Harbor, just as it was obviously designed to be (“propaganda of the deed” and all). And aggression, we explained last chapter, justifies a defensive war in response.

The only “wiggle room” here, for any supporters of that attack, would be to argue that America violated the last condition of minimal justice by

somehow violating the rights of foreign political communities and their citizens at that time. I suppose they would focus on Iraq, Saudi Arabia and the Palestinians. But you cannot just throw out accusations; you have to make a sustained and reasonable argument *and* have it backed by publicly accessible evidence.

America had a presence in Iraq in 2001, no doubt. In fact, it enforced no-fly-zones (NFZ) in both the south and north of that country. It also supplied aid to humanitarian camps contained within the NFZ. But it was entitled to do so by the terms of the treaty ending the Persian Gulf War in 1991, to which Iraq agreed. More controversially, America still maintained sanctions on Iraq in 2001. While these hurt Iraq, they were being maintained to ensure full compliance with the 1991 treaty terms, and the Americans felt the treaty provisions regarding full disclosure of Iraq's program for developing weapons of mass destruction (WMD) were not being met. Legally, the Americans had the right to do this: it is clearly there in the 1991 treaty which Iraq signed. As for the privations which the sanctions created in Iraq, detailed comment will be made next chapter. For now, we note that Saddam's regime also contributed substantially to the sanctions-related deprivations suffered by the Iraqi people in the 1990s. In fact, it benefited from them: the sanctions actually made Iraqis more dependent on Saddam's regime and, if he truly wanted the sanctions to stop, all he had to do was fully comply with UN and US demands. So to blame Iraqi civilian suffering—an admitted reality—solely or even mainly upon the US is not clear-cut. It is certainly nowhere so clear-cut as to justify mass murder in retaliation.¹²

How exactly did America's presence in Saudi Arabia violate that community's rights? America's military was there at the request of the Saudi Arabian government, and indeed had been so since the days of Desert Shield (against Iraq) in 1990. If the terrorists were then to argue that the Saudi government was and remains illegitimate, they'd have to tell us why. It is not a democracy, true, but: 1) we left open last chapter the possibility that non-democratic states might still be legitimate; 2) the Saudi government, in spite of its imperfections, is still widely recognized internationally; and 3) besides, if al-Qaeda had its druthers, it would not institute a democracy in Saudi Arabia anyway—it would institute an Islamic theocracy (i.e., a union of “church” and state, based on a strict, fundamentalist reading of the *Koran*). Would such a regime be consistent with human rights? It is hard to make that case, for such would probably deny freedom of belief and association to non-believers as well as radically curtail female access to such human rights as participation in governance, recognition as equals, elementary education, property ownership, and so forth. The “offensiveness” of America's military presence in Saudi Arabia, to al-Qaeda, is based on non-believers “defiling” the Islamic holy land with their very presence, as well as the more narrow, strategic reason that America's presence there simply makes it harder for al-Qaeda to overthrow the Saudi regime and institute an Islamic theocracy there. But the latter

is a self-interested strategic reason, not a sincere, objective moral one. Even the former is not a moral one, it is a religious one.

(Islamic extremists—like al-Qaeda and the Taliban, the radical ex-ruling party of Afghanistan—don't hate the West for its own sake. To them, we're just infidels who refuse to believe the truth of the *Koran*. We're write-offs, so to speak, destined for Hell. What makes these extremists truly hate the West, especially America, is that America stands in the way of their ultimate goal: the overthrow of governments in traditional Arab lands, and their replacement with strict Islamic theocracies *à la* the Taliban or even Iran. They especially wish to do this in Saudi Arabia, since that is Islam's holy land. But America supports numerous Arab governments—Egypt, Kuwait, Pakistan, Saudi Arabia—and thus frustrates their goal. America also supports Israel, which the Islamic radicals view as being on traditional Arab land, too. So the extremists decided to commit large-scale terrorism against America, hoping such would create enough pain and fear among the American people that *they* would force the US government to withdraw from the Middle East.)¹³

This leaves America's "offensive" support for Israel, and the association in many Arab minds between that and the persecution of the Palestinians. The Israeli-Palestinian problem is difficult, and cannot easily be swept aside—or solved for that matter. There seem to be serious issues of disenfranchisement and aspirations for statehood. But, in the first instance, it is Israel which has front-line responsibility, not America. Secondly, it is not as though Israelis have no claim to the disputed territory, either—which they, unlike their neighbours, have actually turned into a democracy with sincere commitments to human rights (at least for citizens).¹⁴ To count as a systematic violation of human rights sufficient to justify armed attacks in response, it must be a directly, clearly culpable action, not indirect support for another country which has some controversial policies. And it must deal not merely with what your group wants, or schemes to get, but with the substance of vital human need which human rights denotes. All too often people inflate their mere preferences into the status of human rights claims because they know the language of human rights commands attention. But, as I have said, *just because you claim it, doesn't make it so*. You need a sober, non-religious argument—accessible to any reasonable person—which draws on real evidence and fits the definition of what a human right actually is. Without such an argument, proving America's mass human rights-violations (and not merely its preponderance of power and its policies which you don't like), you cannot question America's status as a legitimate state. And if you cannot question that, you cannot justly attack America out of the blue.

STATE SPONSORSHIP OF TERRORISM

A connected issue, of vital importance, concerns whether the non-state actor's aggression was itself "sponsored" by a state actor. If so, war is

justified *not only* against the non-state threat but the state sponsor as well. Aggression is, in this regard, a symmetrical relation: if Q commits aggression against R, and Q had substantial support from P in doing so, then P also aggressed against R. Consider again the 9/11 attacks. It immediately came to light, following the strikes, that al-Qaeda was receiving substantial and knowing support from the government of Afghanistan, known as the Taliban. The Taliban embodied strict Islamist principles, and found common cause with al-Qaeda's terrorist objectives, in particular the desire to spread Islamic theocracies throughout traditional Arab lands. So the Taliban allowed al-Qaeda refuge within Afghanistan, knowing full well al-Qaeda was running terrorist training camps with the objective of committing terrorism around the world. In doing so, the Taliban made itself a legitimate target in the "war on terror" following the 9/11 attacks. Since al-Qaeda committed aggression, and the Taliban's Afghanistan made it possible for them to do so, it was a material part of their aggression (i.e., a co-conspirator, a material accomplice). The term most often applied to states that sponsor terrorism is that they are "rogue" or "outlaw" states (i.e., states disobedient of international law and moral custom in such a flagrant way that they become dangerous). America, along with 28 other countries, invaded Afghanistan in November 2001 and, within two months, routed the Taliban from power. Since early 2002, Afghanistan has been in a state of uneasy post-conflict resolution, to which we shall return in Chapters 6 and 7.¹⁵

Care must be taken to show, however, that any suspected sponsorship is actually there. We can imagine cases, especially in the developing world, where states simply lack the resources to know everything that is going on within their territory. Some states might unwittingly be host to terrorists—as indeed America itself was, during the few weeks before 9/11. The implied duty for states here is one of good citizenship in the international community: actively co-operating in the identification of, and hunt for, terrorists; helping other states to weed out any of their terrorists; and being open and self-critical to the possibility that perhaps terrorists are located on one's own soil. Such are much-needed attitudes in furthering the legitimate aims of the war on terror. It is only when there is an adamant refusal to do so, coupled with concrete evidence of a material link between that state and a terrorist group, that the state itself may be subjected to criticism and opposition, in extreme cases leading to armed resistance. "Material links" include: financing; the provision of weapons, intelligence and/or training; the knowing provision of safe harbour, residence or citizenship; and any blending between the state's own resources and personnel with that of the terrorist association.

Anticipatory Attack and Preventive War

This is a thorny issue much on people's minds since America's decision, in March 2003, to launch an ostensibly self-defensive attack on Saddam

Hussein's regime in Iraq. To get theoretical grounding, let's consider Walzer's thoughts on this topic.

Walzer wants to walk a fine line between two extremes: denying that anticipatory attack by one state on another—or on a non-state actor—is ever justified; and supporting the doctrine of preventive war. A preventive war, as he defines it, is a war prosecuted in the *present* for the sake of maintaining the *future* balance of power, itself thought necessary for long-term peace and security. Such wars used to be very frequent in Europe, especially in the eighteenth century. The grounds most frequently offered for preventive war are utilitarian (i.e., we must war *now* to avoid *future* costs and/or gain *future* benefits). European powers used to do this to prevent any one power from getting too big and threatening. War was, so to speak, a way of taking powers down a peg or two, so they wouldn't cause "an even bigger war" down the road. Walzer believes, soberly, that the calculations required to morally ground preventive war are simply too fantastic to be plausible. *We just don't know that much about how the long-term future will unfold.* Furthermore, the danger to which preventive war is intended to respond is too distant and speculative. It simply doesn't seem to justify the *certain* deaths in the present to go to war based on *speculation* of what another country might be like in, say, 35 years. If any kind of advance action is to be grounded at all, the danger aimed at must be *imminent*, not distant; it must be a threat which is *concrete*, not merely abstract.¹⁶

"Anticipatory attack" denotes an armed attack wherein you strike first but do so *not* out of aims for a distant, future balance of power but, rather, out of immediate aims to pre-empt an attack you know is coming in the very near future. This is "pre-emptive," as opposed to "preventive," war. (I prefer the term "anticipatory attack" to avoid any confusion between the two, and also because the "pre-emptive" vs. "preventive" distinction is too refined to be helpful.) A sufficient threat for justifying an anticipatory attack, Walzer suggests, is composed of three needed elements. The first is "a manifest intent to injure," revealed *either* through a bitter history of conflict between the communities in question, like the Arab-Israeli struggle, *or* through recent and explicit threats. Walzer suggests that the recipient of a justified anticipatory attack can only be "a determined enemy," one demonstrably committed to doing severe harm to one's political community. The second element of sufficient threat is "a degree of active preparation that makes the intent a positive danger." Mere malign intent, even given a conflict-ridden history and/or recent hostile declarations, is *not enough* to ground anticipatory strikes. *There must also be a measurable military preparation* on the part of the proposed recipient of the attack, such as its build-up of offensive forces along the border. Finally, the situation must be one "in which waiting, or doing anything other than fighting, greatly magnifies the risk [of being attacked]." Only under all three conditions is an anticipatory attack justified.

In general, Walzer suggests, “states may use military force in the face of threats of war, whenever the failure to do so would seriously risk their territorial integrity or political independence.” Indeed, he goes so far as to contend that, should State X be faced with these three conditions involving Bellicose State (or Non-State) Actor Y, then Y *has already committed aggression* against X, and thus X at least has just cause to launch an attack. We now see how, for Walzer, the actual deployment of force is not a strictly necessary condition for aggression to have occurred. It is no less a violation of state rights to pose “a serious risk” to the political sovereignty and territorial integrity of a legitimate state than it is to launch an armed invasion against it. Though there are obvious and substantial concerns to be raised here with regard to loosening the concept of aggression, Walzer himself stresses that anticipatory attack can only be truly *exceptional*, and a very burdensome *weight of justification* is borne by the attacker to prove, with evidence, that the three general criteria really do hold in its case.¹⁷

The key here, in my view, is that defence—as in defence from aggression—can be construed either descriptively or normatively. Descriptive defence means you must wait to be, empirically, the *second* one to use force—that your use of force comes *after* that of the aggressor’s. He takes his shot, and then you’re entitled to take yours in reply—like the textbook cases of self-defence. Normative defence, by contrast, means that there *might* be circumstances where, empirically, one’s use of force can come first against an aggressor. A just war is one which is *normatively* defensive—it defends people from aggression and seeks, in response, to resist and repeal it—whereas the tactics which may be employed, within the context of such a just war, may be either empirically defensive or offensive.

Aggression, after all, is universally defined by just war theorists and international law as the violation of state rights to territory and sovereignty. This violation occurs when a state, or non-state actor, obviously presents itself as a *severe* threat to another state and its people. And a state, or non-state actor, can present itself as such a threat in at least one of two ways: 1) by actually attacking a state without just cause; or 2) by posing a *credible, grave and imminent threat*, based on compelling evidence, of launching such an aggressive attack. So a just war of self- or other-defence need not be wholly reactive: there is a bit of room here, I believe, for anticipatory attack as well.

The key notion, with regard to anticipatory attack, is that forcing states to wait for the actual attack, despite its evident and imminent coming, is *not* a reasonable insistence. This is especially the case if there are compelling, public grounds for believing that the coming attack is going to be of considerable force and destruction. A state would be derelict in its duty to protect its members if it did not reserve the right to make well-grounded anticipatory attacks in this regard. It is no less a violation of fundamental rights to deliberately pose a credible and imminent severe threat (i.e., a clear and present

danger—to another person or state). Such interferes with the lives and liberties of states and peoples as readily as does an explicit and actual invasion because it leaves them just waiting for the oncoming attack. The coercive threat functions, and is *intended* to function, in the same manner as an actual attack: to bring about the unjust capitulation of the other country or person. From a just war point of view, the resort to arms by the victim is hence equally justified in either event.

Think of a personal case where an attacker breaks into your home with a gun and declares repeatedly his intention to kill and rob you. He then releases the safety switch on his gun, leaving him free to fire. It is not unjust in such a case, if one has a gun oneself, to fire at that point: the attacker has violated your space, declared terrible intentions, shows himself capable of realizing them and then he takes the final step of just leaving you waiting for the hammer to fall. Given the potentially final consequences of waiting for that hammer, it seems quite reasonable for you to defend yourself. And *it is clearly still defence, even though you're the one firing first*. An even better analogy, representing the state more accurately, would be if a policeman happened upon the scene. Every police force I have heard of allows the policeman to fire at this point, and probably sooner—at the point when the attacker raises his gun towards you—in defence of your life. The cop, or you, fires first but the moral damage and physical danger has first been done by the attacker, rendering him open to being resisted. You're not creating the menacing conditions after all: he is. You are defending yourself from what you have every reason to believe is a credible, grave and imminent threat to your life and rights.

Jeff MacMahan makes an important point here when he says that, even when we go to war in response to an attack which has already occurred, a prime objective in doing so is to prevent even further damage inflicted by the attacker. This suggests that the difference between reactive and anticipatory defence is not so rigid and black-and-white. When we see aggression, we move: 1) to punish it; 2) to resist it in the moment; and 3) to prevent further harm in the future. We can, moreover, plausibly say that all three are done in defence: defence *of values* and defence *of lives*.¹⁸

The just war tradition is, admittedly, seriously split on this issue. We know, from Chapter 1, that Vitoria disagrees with both Walzer and myself here: the Spaniard insists you must wait for the actual attack before you may go to war to fend the attacker off and punish him. International law, for its part, seems to concur with Vitoria, at least in the absence of special permission from the UNSC. Most pre-9/11 writers and international lawyers would be in this camp, other than Walzer of course. Many of the medieval writers, however, argued strongly in favour of the idea—inspired by Augustine—that “protection of the innocent” was a prime purpose of the state, and a just cause for war. And they concluded, upon reflection, that there could be *rare occasion* when a first military strike could be consistent with this principle. If you

wait to receive the first strike, some of your civilians will die and you'll have failed in your duty to protect them. Post 9/11, and in the era of WMD, this view is gathering renewed attention.¹⁹

The American government, in its 2002 *National Security Strategy*, makes the case that—in light of modern terrorism and its objectives of spectacular, hard-to-predict instances of mass civilian slaughter—a responsible government must reserve the right to strike first *if* it will most likely prevent such instances from occurring. “The greater the threat,” the document reads, “the greater the risk of inaction—and the more compelling case for taking anticipatory action to defend ourselves, even if uncertainty remains as to the time and place of the enemy’s attack. To forestall or prevent such hostile acts by our adversaries, the United States will, if necessary, act pre-emptively.”²⁰

It is vital to understand that these considerations do *not* lighten the load of a government making use of first strike. For such a government must then publicly justify its first strike in light of Walzer’s three grounds for anticipatory attack *and* show, fundamentally, how such action is consistent with its function and duty of protecting its people.²¹ All this amendment to just war theory does is refuse to rule out such strikes as a matter of conceptual stipulation or verbal fiat. It leaves it open to reasonable argument, and appeal to public evidence, whether such attacks might be morally justified in particular instances. Just war rules need to offer firm and clear guidance, yes, but to remain relevant over time some aspect of flexibility and openness to considering new situations is an absolute must.

AMERICA’S 2003 IRAQ ATTACK

Now let’s examine an actual case of anticipatory attack: America and Britain’s strike into Iraq in the spring of 2003.²² There were many arguments trotted out in support of a pre-emptive strike on Iraq, prior to its launching on March 19, 2003. But the one most relevant, for our concern in this section, was that the regime in Iraq posed a clear and present danger to the United States. Why did the Bush Jr. Administration believe this? Because it thought Iraq *either* harboured al-Qaeda terrorists, who carried off the 9/11 attacks, *or* at the least because it possessed WMD, which it was willing to give to such terrorists (whom we know from 9/11 would not hesitate to use them). The moral structure of this argument is similar to that offered above, but it adds a further player that we must note with clarity, and some emphasis, in light of recent events. This player is that of the roaming terrorist organization, which moves from state to state, or which operates on a clandestine basis in a variety of states. The principle here seems to be that it is justified to perform a pre-emptive attack on a bellicose state *either* because: 1) its own actions fulfil Walzer’s three criteria as outlined above; *or* 2) it harbours a terrorist organization which fulfils the three criteria; *or* 3) the mixture between the actions of the state offering sanctuary to the organization and the actions of

the organization itself fulfil the three criteria. In the case of the 2003 attack, the final category seems to have been the one foremost in mind of the American war-planners and executors.

There *was* a history of recent armed hostility both between Iraq and the United States and between al-Qaeda and the United States. Iraq and America (as well as the UK and others) clashed in the 1991 Persian Gulf War, and exchanged sporadic fire in connection with the NFZ enforced over Iraq between 1991 and 2003. Al-Qaeda attacked America in 2001, and America replied by invading Afghanistan a few weeks later and, according to some commentators, driving some al-Qaeda members out of that country and into Iraq. Throughout the 1990s, in fact, America had engaged, and been targeted by, Islamic terrorist organizations on a number of occasions and throughout a variety of Middle Eastern, African and American locales. So, supporters of the 2003 pre-emptive strike could argue plausibly that the “bitter and determined enemy” condition of Walzer’s was here obviously fulfilled, both with reference to Iraq and al-Qaeda. I agree. We know, however, that that is *not enough*, that there must be *both* indication of a political willingness of the bitter enemy to attack, *and* clear military indications that the bitter enemy is imminently about to attack, before an anticipatory strike can be justified in terms of just cause.

Here is where the existence of WMD clouds the picture. Essentially, the United States government argued that the military build-up condition was satisfied, in the spring of 2003, simply because Iraq had WMD. (Or so they thought.) In an era when weapons which can kill tens of thousands can be deployed within under an hour, how meaningful is it to have the military “build-up” criterion? Doesn’t just having them count as satisfying that condition? The most plausible answer, I believe, must be *no*, otherwise we’d have to define all the major military powers as severely dangerous, as ticking time bombs. What has to change is how we conceive of the military build-up, or offensive capacity, condition when it comes to WMD. The key here is *not* the raw fact of possessing these weapons, but the recent history regarding their use. It is relevant, for example, to consider the fact that the Hussein regime in Iraq deployed chemical weapons at least twice in recent history: once against Iran in the middle 1980s, the other in 1988 against the Kurdish minority group within Iraq itself. Contrast that with the recent behaviour of other powers who admittedly *have* such weapons, yet who have *not* used them. In the latter case it seems most plausible to infer, from their behaviour, that such powers have such weapons for defensive and deterrent purposes, and are making a reasonably responsible use of them. The Hussein regime did not, and thus could be counted as a serious danger. This judgment is only underlined by considering that the Hussein regime had a record of recent international aggression—in 1990 into Kuwait—and also deliberately shot missiles into Israel’s civilian population centres during the Persian Gulf War which followed. What this reasoning establishes is that the military build-up

condition is to be understood as outlined above when it comes to conventional forces (i.e., as a literal build-up, usually along the border). But, when it comes to WMD, *mere possession* of such weapons *can* count as a severely threatening military capacity *only when coupled with* recent history of: 1) using them; or 2) of having committed international aggression; or 3) of having deliberately targeted civilians during wartime.

We have now established our rule regarding WMD, but a large problem for America's pro-attack case is whether Iraq actually had them. We know, post-attack, that the UK and USA have yet to find any and, indeed, have given up looking. That is a stinging fact which reflects poorly on the war. There are also indications that the "evidence" in favour of Iraqi WMD possession was highly "massaged," raising sharp questions about the professionalism of the intelligence services ostensibly serving their head of state to the best of their ability. Indeed, in December 2005, President Bush Jr. himself admitted in a public address that: "It is true that much of the intelligence turned out to be wrong."²³ Yet it is not all so badly lopsided. Iraq did, after all, actually have and use WMD in the 1980s—so why wouldn't they still have a few tucked away somewhere? The answer might be that the UN weapons inspection process—authorized by the peace treaty of the 1991 Persian Gulf War, and continuing throughout the 1990s—actually succeeded in identifying and stripping Iraq of its WMD. There was obviously severe scepticism, by American intelligence, that the UN could have achieved such success. But *that is allowing one's expectations to shape one's perception of the evidence, instead of the other way around*. A further complication is that, apparently, Saddam was still on the record asserting Iraqi WMD possession. Why would he lie if this wasn't true? One possible answer is that he still wanted to seem tough and dangerous in a very rough part of the world. Should we really be surprised to learn a man like Saddam might lie, or spread disinformation exaggerating his military strength? I don't think so: his miscalculation was in failing to realize how risky such posturing might turn out to be.

In any event, the main question is: what was it reasonable for Bush Jr., of the USA, and Tony Blair, of the UK, to believe in the spring of 2003—and did they make serious efforts to inform these beliefs to the best of their ability? On the one hand, their intelligence services were advising them of Iraqi WMD possession. On the other, many participants within the decision-making process behind that war noted a marked rush to judgment—with pre-formed expectations slanting perceptions of evidence. Usually, that is not what we mean when we talk about making an effort to inform your beliefs. Considering the stakes—not only war but an anticipatory attack involving violent regime change—I think here we must hold the actors to the very highest standards when it comes to clear evidence, reasonableness of belief, and effort at critically cross-checking beliefs and their sources. The decision to go to war is a decision in favour of deliberate mass killing after all, and

an attempt to change the course of history for millions of people. Ethically, it is far too serious to be based on pre-formed expectations, impetuous judgment and perhaps over-excited emotions—emotions like antagonism against Saddam and fear of future terrorist strikes. The standard with anticipatory attack is *higher, not lower* than that for a classical, reactive response to a prior act of aggression. The case, for this to be justified at all, must simply be *impeccable*.

This leaves the final issue of the bitter enemy displaying a political willingness to deploy an offensive military capacity on an imminent basis. Many more questions can be raised here. Iraq seemed fairly docile following its humiliation in “Gulf War One,” coupled with the strict post-war sanctions and NFZ. America and Britain argued that Iraq’s refusal to submit itself to further UN weapons inspections not only violated the peace treaty of that first war, it was evidence of Iraq’s new-found determination either to hide its existing WMD and/or to construct new ones. Even if true, does this count as a growing political willingness to *deploy WMD imminently*? Here is where the reference to al-Qaeda came in: even if the Hussein regime was not itself willing to deploy such weapons, it was willing to supply them to the al-Qaeda terrorists who had fled Afghanistan following America’s destruction of the Taliban government. Since we know, from 9/11, that al-Qaeda would eagerly be willing to use such weapons, what we have is essentially a conspiracy, by both a belligerent state and a belligerent terrorist organization, to imminently attack America, and with WMD no less.

The *structure* of this argument seems right, according to the criteria defended above. The real issue here, of course, is whether these normative criteria *were actually fulfilled* when the strike was launched in March 2003. In other words, the principles seem right but was the evidence wrong—or, even worse, manipulated and exaggerated? We have just considered the question of Iraqi WMD possession. Now let’s turn to the supposed “substantial connection” between al-Qaeda and the Hussein regime. The Bush Jr. Administration said it had evidence of a handful of sporadic meetings between low-level al-Qaeda and low-level Hussein regime officials. OK, but is such clear evidence of conspiracy? You’d think there’d be regular, high-level meetings. Some of these low-level people might have had personal, not political, reasons for meeting each other. Or, if they were political, they might have dealt with a range of issues—including a coup attempt against Saddam—which had nothing to do with America. Many Middle East experts have noted that al-Qaeda and Saddam would make for genuinely bizarre co-conspirators, since al-Qaeda are religious fanatics and Saddam’s regime was a secular dictatorship in the style of Stalin. Indeed, Iraq fought a long war, in the 1980s, against Iran *to resist* any export of Iran’s Islamic extremism. Saddam seemed to *purge, rather than protect*, any fundamentalists on his soil. Truly, given the aims of al-Qaeda to install Islamic governments throughout the Middle East—including Iraq—why on earth would Saddam give them

WMD? They'd be much more likely to use such weapons *against his regime* than on the USA. It just doesn't add up.

Mere acknowledgement that here were two dangerous organizations, in the same general region of the world, both with reason to loathe and perhaps attack America, does *not* add up to a strong and plausible connection of a conspiracy between them to do so in the very near future. Indeed, the US Congressional Commission on the 9/11 attacks, in June 2004, said it had no evidence of any connection between Saddam and al-Qaeda.²⁴

(Note that here the supporters of America's Iraq attack might switch tracks regarding which terrorist organization is most relevant here, moving away from al-Qaeda and underlining firmer, demonstrated connections between the Hussein regime in Iraq and suicide bombers in Palestine against Israel.²⁵ The grounding of America's attack would then move from anticipatory *self*-defence to anticipatory *other*-defence. This might be a stronger move, but it doesn't deal with the issue which the Bush Jr. White House put so much emphasis on, which was pre-emptive self-defence for America. Recall our discussion last chapter of the importance of calling your shot correctly in wartime, and not simply throwing out all possible reasons in favour of attack.)

To summarize: while the condition of the bitter, determined enemy *was* clearly satisfied in connection with the Spring 2003 attack, it is quite doubtful whether the other two conditions were satisfied (i.e., whether the enemy was both capable and imminently willing to launch an attack). Al-Qaeda seemed imminently willing, whereas Iraq—perhaps as a result of its own disinformation—seemed imminently capable. Put the two together and you have got your case. *But it is precisely that putting together which is in deep and profound question*, alongside the reasonableness of the belief that Iraq was actually capable in the first place. Until more information surfaces to the contrary, it seems that far too many questions and ambiguities remain to declare this cause of war justified. I believe, as I have mentioned, that the grounds for an anticipatory attack—even in the post-9/11 world—have to be *crystal clear*, in order that the permission not become so flexible as to allow for anything to get through. In my judgment, then, the 2003 Iraq attack was much better justified *not* as an anticipatory attack of pre-emptive self-defence but, rather, as an act of humanitarian intervention (of which we will say more below). As anticipation, the argument on the whole *fails*, satisfying only one of the three needed conditions.

All these questions and difficulties might seem to stretch beyond this particular case, and into the very principle of anticipatory attack. But I don't necessarily see why. It is, admittedly, *much more difficult* to ground a pre-emptive strike than it is to ground an empirically defensive manoeuvre. The bar is set much higher, and rightfully so, in order to reign in warfare and to limit the grounds for launching it. But the abstract analogies above suggest that it is not impossible; and even in relatively clearer instances of justified wars, there are always deep questions to raise about any interpretation of the

empirical evidence cited and what it most plausibly shows. Think, for instance, of the right intention condition, or the probability of success condition. An empirically defensive justified war does not escape from these difficulties any more than an empirically offensive justified war does. The devil truly is in the details, and knowing what they show. But in either case it does *not* follow, from the fact that the details can be difficult to make out, that the principles which authorize force themselves get called into question. That is a separate matter which has to be dealt with at the level of principle alone.

Civil Wars

There are two main moral questions when it comes to civil war. The first is whether it can ever be just to fight one; the second is whether it can ever be just to intervene in somebody else's. The answers to both questions, however, revolve around the same issue: that of the minimally just and hence legitimate state.

MINIMALLY JUST POLITICAL COMMUNITIES

The issue of a minimally just political community, introduced last chapter, is of central importance to just war theory. The reason why we should limit ourselves to talking about “minimally just” political communities is twofold. The first aspect is modesty: there is no perfectly or “maximally” just political community in existence. Some are better than others, of course, and some pass the threshold of minimal justice while others fail it. But no existing political community embodies the ideal; all are, in some ways, flawed or sub-optimal. As Kant once insightfully intoned, “out of the crooked timber of humanity, no straight thing was ever made.”²⁶ The second relevant aspect to the “minimal justice” construction is that the political community in question must at least have that degree of moral value, otherwise it has no ethical reason to exist. From the fact that we humans live in groups, and have formed nation-states, it does not follow that we have to respect all such groupings and state structures. For such might be brutally exploitative, slavery-condoning, tyrannical, or warmongering. *The groupings we freely create, and the state structures we condone, have value only if they are minimally just.* I have already suggested in the last chapter that a minimally just state: 1) is recognized as legitimate by its own people and most of the international community; 2) avoids violating the rights of other legitimate states; and 3) makes every reasonable effort at satisfying the human rights of its own citizens.

The most basic purpose of a national government is defence: defending its citizens from outside aggression by another state (or non-state actor), and also defending its citizens from predatory criminals residing within its borders. If a state is fundamentally incapable of being reasonably successful in this regard (i.e., of providing its citizens with security) then the social

contract dissolves. There is no reason for the people to obey such a state and participate in it. Such a state must be radically transformed into a new one, or several, which can offer reasonable success in this regard, otherwise its people cannot count on living a life at all, much less a happy and enjoyable one. There simply must be a baseline of physical security, and freedom from severe and systemic violence, if there is to be a political community at all.

This quick reminder of the basics of the minimally just or legitimate state is essential to an understanding of the ethics of civil war (as indeed we have seen it is for war in general). For many, perhaps most, political communities today are, in fact, *composites* of many sub-groups and communities. Sometimes, group rivalry within the one state becomes so intense that fighting breaks out, either to control the one government shared in common, or else to secede and form a new state, out from under control of the old one. When, if ever, is it just to fight a civil war? One case would be when the central government fails any of the criteria of minimal justice. Any such government has no moral reason to exist, and so to resist its tyranny with force of arms is permissible.

BLUE VS. GREY

One case of a justified civil war was the North's war against the South in America from 1861 to 1865.²⁷ But the North represented the Union—the central government. So how does this case fit? For here it was the secessionist South which represented injustice. It did so because the South was the aggressor in the war, deliberately starting hostilities by bombing the federal Fort Sumter in South Carolina. Moreover, the South explicitly fought to form and preserve a mode of government which condoned slavery. Slavery is a massive social injustice, a hideous and widespread violation of human rights—depriving slaves of freedom, basic equality, social recognition as persons and, quite often, their very physical security. As such, the Confederate government of the South, led by Jefferson Davis, failed the criteria of minimal justice and had no moral value which could root a permissible defence against aggression. There has to be something there which has moral value for it to be permissible to go to war to gain and/or defend it. (This is the key question in a civil war: *who has minimal justice on their side?*) Is the central government minimally just (like the Union in the US Civil War) in contrast to the seceding state which either is, or aims to become, unjust (like the South)? Or is the central government an oppressive tyranny, or a severe discriminator which respects the rights of one privileged group while violating those of another? In the latter two cases, the seceding group would have justice on its side *provided that*, should it win, it clearly commits to establishing a legitimate state. Unfortunately, new states have sometimes been known to engage in discriminatory human rights violations against hated minority groups within their new borders—especially if such minorities were part of the

majority in the old state they formerly shared. Of course, if new states do this, they themselves fail the criteria of minimal justice, and their secessionist struggle is revealed to have been dark and tyrannical, not bright and liberating. In sum, the civil war, to be just, must be done *either* in defence of an existing minimally just state, *or* with the aim of escaping an illegitimate political structure and creating a new, legitimate one. This all supports the accuracy of our core conception of war as, ultimately, a massively violent struggle over the governance of a territory.²⁸

WALKING AWAY?

Now, what if both sides have minimal justice on their side, which is to say we simply have two communities, formerly united, which now wish to separate? We cannot pronounce this unjust. Preserving union, just for the sake of union, is not sufficiently serious to justify warfare. Borders, while possessing real value, are not sacrosanct and eternal. Communities, like people, do change and so political associations can change too, provided they each remain minimally just in their essential structurings. The compelling analogy here is to a “no-fault divorce” between a couple. Here we have no injustice—“no fault”—on the part of both sides; we simply have a case of both sides having changed, wanting something different for the future, and hence wanting to dissolve the current set of rules. This is totally fine but note that, like divorce, the separation agreement must be comprehensive and fair. These agreements, predictably, are complex—involving splitting of territory and assets (as well as debts), custody and support issues relating to any “dependents,” and perhaps even support or “alimony” payments as well. When we think of splitting a country, new borders and territory are vital issues, as is access to water and farmable land. Dividing the assets and liabilities of the old central government must be done fairly, and especially important for security and the avoidance of war is the dissolution of the old armed forces and the sound distribution of military assets.

Particularly sensitive is the treatment of “dependents.” Take the case of Canada, which has contemplated these issues from time to time as Quebec separatism flares and then fades. If Quebec, which has a French-speaking majority, separates from Canada, what happens to the English-speaking minority concentrated in Montreal, and the Native or Aboriginal communities concentrated in the north of that province? The peaceful and just answer is that a negotiated settlement has to be arrived at, which might involve anything from Quebec giving land back to Canada to house these minorities or else Quebec keeping all its land but coming to arrangements with these groups to protect their human rights in an independent Quebec. The reason why this is such a sensitive issue is that, in European history anyway, the failure to resolve minority rights issues peacefully has sparked many a dreadful armed conflict.

There might also be issues of “international alimony” arising in such a split, say where one side agrees to let the other have a chunk of territory in exchange for a cash payment. Or perhaps a valuable resource deposit resides in the territory of one side—perhaps to keep it, that side must promise and deliver an ongoing share of the profits to its ex-partner. Or perhaps one side, after secession, will be so poor that it cannot afford to ensure minimal justice for its citizens, which after all takes resources. In such an instance, a transfer payment would have to be required, until the poor side develops more and its economy gains the needed traction to generate rights-respecting resources.²⁹ These are all politically explosive issues, and fighting has often broken out in connection with them. *But it doesn't have to*—the recent split, in the early 1990s, between the Czech Republic and Slovakia (formerly Czechoslovakia) shows that new communities can be formed in ways which are peaceful and minimally just. Both sides, if you ask them, are quite proud, and justifiably so, of their “Velvet Divorce.”³⁰

PICKING SIDES AND INTERVENING

We now turn to the issue of justifying armed intervention in some *other* country's civil war. This seems justifiable only when there is an obvious injustice on one side of the civil war, and you are intervening on the side of justice. There must be substantial injustice at stake—no country, for example, would have been justified in sending their army to bust up “The Velvet Divorce,” or to slant the terms of that break-up to favour their own country. That would itself be aggression. But if there is substantial injustice at play in a civil war—either on the central government side or on the secessionist/reformer side—then armed intervention on behalf of the just side is permissible, assuming that side has requested outside assistance. If it has, you are entitled to intervene. Moreover, you are entitled to try and win the war for your side. Walzer's notion—that you are only entitled to “counterbalance” or “neutralize” the unjust side's influence, and then “let local forces prevail”—is to me not operational.³¹ It is not operational in the sense that *the only objective which is coherent and action-guiding on the ground in war is seeking victory*. Think of the general's point of view on the field of battle: how do you know when your forces have merely “offset” or “neutralized” the unjust side, versus when they have defeated them? Are you only supposed to knock out two-thirds of a division? Take only four-fifths of a valley, or city? Walzer's aim of counterbalance is simply too abstract actually to be acted upon. *We are entitled to try to win the just wars we fight*, not merely to enhance our odds or to neutralize certain countervailing forces. And winning a war means forcing the enemy to both surrender and accept decent terms of peace.

Intervening in a civil war will always remain controversial. There is a lingering, intuitive suspicion that “this is their struggle, let them fight it out and resolve it themselves.” This attitude might be compelling when both

sides in the war are unjust, or if both sides are just and are simply having difficulty negotiating a separation. But I don't share this hands-off attitude when one side is just, the other clearly unjust. In such a case, it is more important for justice to be served than it is for "local forces" to be balanced. What matters most in political life is justice, not washing one's hands of what is going on next door. More on this when we shortly discuss humanitarian intervention.

THE VIETNAM WAR

It is hard not to feel for the people of Vietnam, one of the most war-ravaged pieces of territory in the twentieth century. Formerly a French colony, Vietnam was conquered by Japan and occupied throughout World War II. France, during the peace settlement of that war, reclaimed Vietnam. But a focused, armed group of Vietnamese—who also happened to be communist—resisted this return to French control. They came to be called the Viet Minh, or Viet Cong, and they wanted an independent Vietnam. When they saw that they would not get their way, they started to fight. We can call what followed something like the French-Vietnam war, from 1945–54. It was an anti-colonial struggle, and it eventually split Vietnam between North and South, with the communists prevailing in the North and the French and their Vietnamese sympathizers in the South. The Vietnam War was thus a civil war—a brutally long one, with different phases—and one featuring extensive foreign intervention on both sides.³²

In 1954, the Geneva Settlement was supposed to have ended the issue. It called for Vietnam to be temporarily split into North and South, with free elections to be held in 1956, and then for the temporary split to be dissolved, and re-unification begun, based on the election results. France would quit the country entirely, and there would be a new, unified and independent Vietnam. On the basis of this deal, relative peace was obtained for nearly two years.

What reignited war was the fact that the government of South Vietnam, led by Diem, betrayed its pledge to participate in the 1956 elections. In response, insurgents from the South, who identified with the North, tried to forcibly overthrow Diem: if Vietnam would not be unified by ballot, it would be so by bullet. What is interesting, though, is that France decided to leave anyway at this point, and the Diem regime begged for, and received, extensive American support to fill the gap: cash, weapons, military training, technology and eventually US troops themselves.

The Americans got involved, under presidents Eisenhower and Kennedy, because of the Cold War with communism. China had experienced a communist revolution in 1949, and American decision-makers in the 1950s were terrified of a so-called "domino effect" of communism toppling government after government throughout Southeast Asia, as it had several years prior in Eastern Europe. They decided to draw a line at Vietnam, and when the

French got out the Americans felt they had to go in. So began the American-Vietnam War, which probably lasted from 1956–73, though some would debate the starting point and argue for anywhere from 1956 to the Tonkin Gulf Resolution, of the US Congress, in 1964. This Resolution was in response to the North Vietnamese attacking US ships in the Gulf of Tonkin. The battle lines were by now firmly drawn: on the one side, southern insurgents, North Vietnam and to an extent communist China; on the other, the southern establishment (Diem and later others) and the United States.

Critics of the Vietnam War, like Walzer, argue that it was unjust for a number of reasons, but mainly two. First, America entered the war not out of any sincere concern for the Vietnamese people but rather for reasons of *realpolitik*. Its motivation for fighting had nothing to do with resisting aggression; rather, it had everything to do with this cynical Cold War chess game of preventing communism from expanding beyond the Soviet Union, Eastern Europe and China. In just war terms, America failed right intention. Secondly, it has been established that it is unjust to intervene in somebody else's civil war *unless* you are intervening on behalf of the just side, and at its request. Well, the Diem government certainly did request American help, but many questions can be raised about whether it was a minimally just regime. First, it betrayed its pledge to the North, and the international community, to participate in the 1956 elections. The elections were meant to decide the future of the country: to fail to participate was bitter bad faith—violating a pledge and preventing voters from exercising political sovereignty. Second, Diem's regime had clear streaks of corruption, discrimination and authoritarianism, showing lack of respect for human rights, especially those of non-Catholics. Part of this oppression might be explained by the pressure of the civil war, but most experts sensed a real disconnect between Diem and the South Vietnamese people, and they weren't surprised when he was assassinated in 1963, just days before JFK. After Diem, South Vietnam lurched unstably from regime to regime, and people like Walzer argue that this political instability showed that the people of South Vietnam simply didn't endorse American-supported governments. As Walzer puts it: "(T)he continuing dependence of the new regime on the US [was] damning evidence against it ... a government that receives economic and technical aid, military supply, strategic and tactical advice, and is still unable to reduce its subjects to obedience, is clearly an illegitimate government."³³ And armed intervention on behalf of an illegitimate government is not just.

The counter-argument, made by supporters of the war, is that America was indeed responding to an act of aggression: the South may have backed out of the election, but it was the Southern insurgents who first attacked the Southern government with the object of armed conquest in the name of communism. Secondly, there was clear evidence that the North, and China, were involved in creating the political instability in the South. Thus, you cannot use that instability as evidence of the illegitimacy of the Southern regimes:

it doesn't reflect the choices of the Southern people so much as pressure from outsiders. Indeed, the Americans could say they were merely "counter-invading" after the prior invasions of the North and China. Finally, the Diem regime might have been bad, but communism was a terrible form of government, which we all know now was complicit in massive human rights violations. Some of the most terrible mass slaughters of the twentieth century were perpetrated by communist regimes, like Stalin's purges in the 1930s, China's Cultural Revolution in the 1960s and Cambodia's Khmer Rouge "Killing Fields" in the 1970s. Communists believe that only the mass (of workers) has worth, and that individuals themselves have no human rights.³⁴ What could be more just than trying to save the South Vietnamese from that?

Coming at a final judgment on Vietnam is very difficult, since there are these seriously competing considerations. Civil wars usually are more complicated to figure out than classical inter-state struggles. The cause of resisting communism was compelling, and the North and China were on the scene as early as the Americans were. On the other hand, the election betrayal was major, and Diem's legitimacy was deeply questionable. There is the almost inscrutable issue of popular support—with whom did the people of South Vietnam identify? There is some indication it was with the North. Indeed, Diem arguably betrayed the election pledge *precisely because* he feared a Northern victory. Furthermore, America absolutely pummelled the Viet Cong communists in the late 1960s with massive—probably disproportionate—bombing raids, and over a half-million active US troops in the thin sliver that is Vietnam. It seems to me that the only way the Viet Cong could have survived such an incredible onslaught, from a superpower, was precisely because, as Walzer says, they came to enjoy the support of most of the Vietnamese people. This public support allowed the Viet Cong to engage in the covert attacks and guerrilla tactics that so frustrated conventional US forces: they would strike, and then melt back into villages, farms and cities, where they were provided cover. Another relevant piece of information is this: after the US withdrew in 1973, it took the Viet Cong only one year to control all of Vietnam, and the communists remain firmly in control over thirty years later. Such quick and enduring success seems possible only with considerable public support. One might say the alternative explanation is the sheer force the North Vietnamese, backed by China, brought to bear. It is a difficult call. My own call is that it was probably more the indigenous support factor, which itself was fuelled more by furious anti-colonial sentiment than by any genuine pro-communist feeling. Don't forget that Vietnam had been a colony at that time for more than one hundred years.

This is not to say the current Vietnamese government is legitimate, for the people might not have known what they were getting into and may feel betrayed by the police state communism put into place in the unified Vietnam. Countries, like people, can make bad choices under pressure. But so long as those choices aren't so bad as to justify humanitarian intervention

—to be discussed below—it seems they are free to make them outside of foreign intervention.

In sum, I'm saying that *the Vietnam War was unjust on both sides*: on the American side, owing to South Vietnamese popular support for the non-colonial side and, on the communist side, for aiming at the institution of communism in South Vietnam. The tragedy was that the non-colonial side *was also* the communist side, and so popular support—in a very pressured situation—had a severe downside. The people could not, at the time, get their non-colonial regime without it being communist. Is this like selling yourself into slavery? Perhaps quite so and, odd as it seems, that remains your own choice.

One quote from the Vietnam War which sheds light here is the infamous quip of an ordinary US soldier: “We had to destroy the village in order to save it.” This line is often quoted as a kind of dark joke, or else to ridicule the pretensions and naivety of American imperialism. Instead, the quote captures precisely the cruel dilemma of that war: America went into Vietnam to save it from the imposition of communism, ostensibly a just cause. It turns out, however, that the communists had widespread public support—probably not so much because they were communists but because they were Vietnamese and the people were sick of foreign forces—French, Japanese, Americans—ruling them. Plus, the Diem alternative to communism had its own legitimacy issues. So the people sympathized with the communists—who were, admittedly, extremely aggressive and themselves foreign-supplied—and resisted. The ultimate result: destroyed villages all over. To call that kind of destruction just, you need crystal clear justification, not strength on some issues and weakness on others, as in this situation. *When there is no clear justified side, just war theory insists you pronounce the war questionable on both fronts.*

Armed Humanitarian Intervention

The fourth, and final, revision to the classical account of *jus ad bellum* concerns humanitarian intervention, such as occurred in Kosovo in 1999. This is a hotly disputed topic, and the body of international law is nowhere near as settled as it is when it comes to individual and collective self-defence. In general, there is a very strong presumption in international law—going back to Grotius, Pufendorf and Vattel—against any outside interference with the domestic situation of any country, especially interference backed up with the force of arms. But it should be noted that a considerable number of such interventions have nevertheless been authorized by the UNSC, such as in Somalia in 1992–94 and, in a more complex fashion, in the former Yugoslavia in 1992–95. Recall that most international lawyers believe UNSC authorization is absolutely necessary prior to humanitarian intervention.³⁵

Humanitarian intervention seems, at first, to pose a special problem for the prevailing aggression-based paradigm, since it involves armed intrusion

in a country which has *not* committed aggression against another state. Moreover, such intervention is animated by moral and political ideals which may seem to lack universal endorsement, and thus raise the ugly spectre of violent paternalism on the global stage: “Treat your people the way we think you should, or else feel our wrath.”

The only kind of armed humanitarian intervention which Walzer accepts is intervention designed to rescue citizens of a state from “acts that shock the moral conscience of mankind.” He is willing to endorse armed humanitarian intervention *only* in cases where the state in question is using military force to engage in wicked and widespread human rights violations. This is the key: I propose we think of such a state as an “*internal aggressor*,” since here too we have the use of rights-violating military force on display. We have a failure to meet the conditions of minimal justice, which in turn renders that state illegitimate and, as it were, attack-able. The International Commission on Intervention and State Sovereignty (ICISS), in its influential 2001 report, comments similarly that protection of a population is a key implication of, and responsibility within, the right to sovereignty. If a state cannot provide such—or, worse, if it itself becomes the threat—then *it is actually consistent with the concept of sovereignty* for others to go in, in order to protect that population.³⁶

Walzer is keen, I think correctly, to stress the degree to which the armed human rights violations in question must be “massive” and “terrible,” such as incidents of “massacre and enslavement,” to ground armed intervention by a foreign power. As examples of justified interventions, Walzer cites Vietnam in Cambodia in the mid-1970s and the North Atlantic Treaty Organization (NATO) in the former Yugoslavia throughout the 1990s.³⁷ In the Cambodia case, for instance, the unbelievably brutal and bloody Khmer Rouge regime put into operation its “Killing Fields,” murdering one million fellow Cambodians deemed to be enemies of the regime, which was attempting to forge an entirely new, severely socialist “utopia.”³⁸ The unified government of Vietnam invaded and overthrew the regime, stopping the “Fields” and all the dislocation and refugees they were producing. In the case of the former Yugoslavia, the countries of NATO—led by America—bombed Serbia in 1995 to make it stop its involvement in massacres of Muslims in such cities as Sarajevo. The bombing is widely credited with forcing Serbia to sign the Dayton Accords, which ended the Bosnian civil war that developed out of Yugoslavia’s collapse. (See below for the case study.) When the Serbian regime went back to its old brutal tricks—massacring and forcibly displacing tens of thousands of Muslims (and perhaps many more) in 1999 in Kosovo—NATO again attacked, this time much more aggressively, resulting in a change of regime in Serbia.³⁹

Let’s comment more on the extent of government brutality which needs to be actual before we can consider armed humanitarian intervention. Faced with what we might call “run-of-the-mill” government insensitivity to some human rights claims (say, non-discrimination), citizens need to take it upon

themselves to begin the kind of political activism and struggle needed to win such freedoms and benefits. Self-help is the order of the day; that is part of what we mean by political sovereignty and self-determination. Thus, it is *only* those truly terrible human rights violations which, in Walzer's words, "make talk of community or self-determination ... seem cynical and irrelevant" which justify armed humanitarian intervention by a foreign power. In these extreme cases, it is precisely the incapacity for self-determination that draws foreigners in, and rightly so. *The domestic citizenry is not only desperate but doomed without international armed rescue*. Interestingly, Walzer believes that such humanitarian intervention is morally *obligatory*, whereas intervention in a secessionist struggle, or in a civil war, is merely *permissible*. I concur. This sense of obligation in the face of humanitarian catastrophe is clearly displayed when Walzer swears that: "People who initiate massacres lose their right to participate in the normal ... processes of domestic self-government. Their military defeat is morally necessary."⁴⁰

Walzer is especially critical of those who, when confronted with such a grave and genuine humanitarian emergency, reason as follows: yes, there is a fire burning and firefighters are probably needed to put it out; but it is not *our* building, so there is no claim on our resources, much less our firefighters. Walzer's effective rejoinder: "[T]he price of sitting and watching is a kind of moral corruption that ... [we] must always resist." What about those who argue against intervention not so much out of a misplaced respect for whose turf it is but, rather, out of fears of intervening in a conflict they know little about and of running the risk of making things worse? Walzer answers compellingly: "Of course, every fire has a complicated social, political and economic background. It would be nice to understand it all. But once the burning begins something less than full understanding is necessary: a will to put out the fire—to find fire-fighters, close by if possible, and give them the support they need." Fires like the ethnic cleansing and Muslim massacres in Bosnia in the mid-1990s, or the mass expulsion of Kosovars from Serbia in the late 1990s, require us to "see the fires for what they are: deliberately set, the work of arsonists, aimed to kill, terribly dangerous."⁴¹

What about those who urge non-intervention, even in such obvious humanitarian catastrophes, on grounds that such might be a slippery slope to imperial aggrandizement—to great powers meddling in vulnerable communities? Walzer's reply is that such is always a risk, but not one so real it justifies wilful non-intervention in a clear humanitarian emergency. The moral balance, between *certain* massacre and *possible* imperialism, is obviously on the side of preventing, or stopping, the massacre. Consider, as Walzer says, that in recent history those countries which have cried out for armed humanitarian intervention—Somalia, Bosnia, Rwanda, Kosovo—haven't exactly been prime pieces of global real estate. The temptation to take another's territory has simply not been there. The deeper answer is that the risks of imperial tinkering are more distant and abstract than the closer

and more palpable risks of watching people get murdered when one could have done something about it. The risk far greater than great power meddling or aggrandizement is the moral indifference that leads to non-intervention, even in spite of overwhelming evidence of a grievous and preventable humanitarian tragedy. Rwanda, of course, serves as the most searing and terrible example of this in recent history. In the spring of 1994, almost 800,000 people—again, 800,000 people, in just one season—were slaughtered in an act of near-genocide, and the international community failed to respond effectively. Indeed, it hardly responded at all. Typically, everyone pointed the finger of responsibility and blame at everyone else. Most agree that it was a heinous and deeply shameful event. Some wondered aloud whether, in light of Rwanda, we had actually learned the clearest lessons of The Holocaust.

Perhaps a little bit more on Rwanda, in central Africa, would be insightful. Rwanda, during its colonial days under the rule of Belgium, was dominated by a minority group, the Tutsis. The majority group, the Hutus, resented being dominated and, when independence from Belgium came in 1959, the Hutus turned the tables and took control. Relations between the groups were always tense, and at times broke out into armed conflict between the Hutu-dominated Rwandan Army and the Tutsi-dominated rebel force, the Rwandan Patriotic Front (RPF). In 1993, after several years of fighting, a peace accord and power-sharing arrangement were achieved. Before they could be implemented, Hutu extremists formed private militias to carry out an audacious and murderous plan: not only to destroy the peace accords but to eliminate the Tutsis and even any moderate Hutus who supported peace with the Tutsis. They truly had genocide on their minds: to destroy the Tutsi people. The Hutu extremists seized power in a coup in early 1994, killing the moderate Hutu leadership. While the UN did have a peacekeeping force already in Rwanda, as soon as some of its (Belgian) members were killed in the coup's early days, the UNSC ordered a complete withdrawal—in spite of the pleas of the peacekeeping unit's own commanding officer, Romeo Dallaire. He knew what was going to happen and presented the UN with evidence of a genocidal plot. But all Western troops left the country, taking their own nationals with them. They even closed their embassies. The Hutu extremists had free reign to execute their horrible plan and, by April, had killed about 800,000 people, both Tutsi and Hutu. Most were butchered brutally with machetes or shot at point-blank range with small guns. Fully one-third of all Tutsis on earth were murdered. France, alone amongst Western countries, re-intervened late in June and helped re-establish some sanity (though some say France allowed the perpetrators to leave the country as well). Then—then!—the UNSC voted to return “peacekeeping” forces back to Rwanda.⁴²

So concerned has Walzer become over this threat of non-intervention—or even of withdrawing in the face of mass slaughter—that he has actually changed his views about what justice requires of an intervener in an

humanitarian emergency. Whereas he used to believe that the goal of a justified intervener was “the in-and-out rule,” he now believes more extensive obligations may be involved, and it is important to hear him out. The “in-and-out rule,” designed precisely to mitigate the likelihood of great power meddling, called for interveners to focus on “rescue, not rule”: to get in, rescue the people who need it, and get out as soon as the rescue has been secured. The goal was to make intervention *as little like* intervention as possible, thereby maximizing space for local self-determination. Now, however, Walzer believes that recent international experience demonstrates that interveners need to make a deeper commitment than simply “in-and-out,” and they need to make it explicit even before they go in. On the limits of this deeper commitment, Walzer is vague, if not silent.⁴³ But its content, I believe, clearly involves some kind of post-intervention assistance in reconstructing the society that required rescue. The question ties into deep perplexities of post-war, or post-conflict, settlement and rehabilitation: issues that are only starting to get the depth of attention and inquiry they deserve. We will return to these vital issues in later chapters. This is all to say, importantly, that those who intervene face an additional burden when it comes to just cause: they must commit themselves, in meaningful fashion, to reasonable aid and assistance in the post-conflict situation. The ICISS puts it thus in its report: “... to provide, particularly after a military intervention, full assistance with recovery, reconstruction and reconciliation, addressing the causes of the harm the intervention was designed to halt or avert.”⁴⁴

Note that post-conflict aid and reconstruction is premised on *actually being able* to aid and reconstruct, and this usually means being in a strong position at the end of the intervention. This is a vital point, in light of contemporary experience with humanitarian intervention: *if you go in, you must go in with the goal of winning*. We saw, in America’s 1992–93 intervention in Somalia, that a very mild and limited intervention—aimed at separating belligerents and alleviating starvation—was perhaps doomed to fail from the start because the goal was not the military defeat of the culpable side, merely the separation of forces and the interdiction and arrest of one of that side’s leaders. As soon as serious resistance was met, the US turned tail and ran.⁴⁵ The result? Somalia was no better off than before America intervened. So what did those US troops die for? Even worse, the Somalia failure was almost certainly the real reason why America did not intervene in Rwanda a year later, to the loss and misery of staggering numbers of people. America feared another failure in Africa and thus didn’t even risk it the second time around. Inserting a small armed force to try to keep the peace between rival factions *does* have a time and place—notably when the belligerents *agree* to be so separated—but that time and place is *not* during a humanitarian intervention. The side slaughtering the other needs to be *defeated* militarily. The size and strength of the intervening force should be adjusted accordingly, and the terms of engagement (i.e., instructions to soldiers) must be clear, and allow

fighting forces to do what they do best and are actually trained to do: pursue victory and force the other side either to surrender or be destroyed. As the ICISS puts it here, effective intervention demands "... clear objectives, clear and unambiguous mandates at all times; and resources to match."⁴⁶

There are some anti-imperialist thinkers who want to say that the interveners must also be freely invited into the country on behalf of the group they are intending to aid. I think this is mistaken, and naïve. Naïve, because it fails to grasp the brutalities under which the victims may be suffering: they may not have meaningful chances to articulate a clear communal petition to the international community while they are running, and fighting, for their lives. Mistaken, because their failure to make a formal request might prevent someone from going in, with the result being a terrible massacre and perhaps even worse. The anti-imperialist position is like saying a cop shouldn't intervene in a gang's brutal street attack on an innocent bystander until she formally requests his help. *From the dreadful deeds alone*, we can infer that the victims of massacre do indeed consent to any intervention on their behalf, at least in the absence of any explicit non-consent. No formal requirement of request seems reasonable here, given the gravity of the threat.

Finally, what of those who object to armed intervention, even in humanitarian catastrophes, on grounds that it is unclear who exactly should bear the duty of intervention? Walzer's reply: the duty to intervene forcibly in cases of humanitarian emergency is admittedly imperfect—it picks out no one specific country. The duty is, rather, borne at large by the international community. This does not, however, imply that only global agencies like the UN have the moral legitimacy to authorize and execute armed rescues in states which remain externally non-aggressive. Walzer submits, and I concur, that *any* state willing to take on the burdens of armed rescue is permitted to do so, provided of course that all the criteria for a just intervention, as here laid out, have been fulfilled. The imperfection of the duty to intervene has caused much of the controversy surrounding armed rescue, since a main temptation in favour of sitting on the sidelines has been a belief—sometimes sincere, sometimes otherwise—that another country, or regional grouping, is better placed to intervene. Walzer has recently grown more accommodating to the idea of experimenting with a global security force, for instance under UNSC auspices, that might one day have responsibility for such actions. Indeed, NATO has recently created a rapid reaction brigade to act in similar fashion within its jurisdiction, which is to say North America and now most of Europe including Turkey. Until we have rapid reaction forces in regions around the world, or else under UNSC control, there seems little prospect for changing from what we already have: an imperfect situation wherein *we must rely on our own moral responsiveness to move in*, where needed, to rescue people from being massacred, enslaved or displaced by their own government. And it is indefensible to suggest that failure to have intervened in one spot (for example in Tibet, or Rwanda) implies that for the sake of some

twisted concern for consistency we should fail to intervene everywhere else. The more appropriate response is to regret and condemn our past mistakes—our previous acts of weakness of will—and move ahead to rescue those who need it on a more reliable basis.⁴⁷

BACK TO IRAQ

Now, what of the prior declaration that the strongest justification for America's 2003 war of regime change on Iraq was as an act of armed humanitarian intervention? The war was, after all, labelled "Operation Iraqi Freedom," freedom from the rights-violating brutalities of Saddam's unjust dictatorship. In light of the failure to locate Iraqi WMD, President Bush Jr. himself, in December 2005, boldly re-asserted this justification for the war, claiming: "[W]e are in Iraq today because our goal has always been more than the removal of a brutal dictator. It is to leave a free and democratic Iraq in his place."⁴⁸

I do believe that this *was* the strongest reason available to America but that *doesn't* mean I believe the war was justified. Why? First, there is the requirement to call your shot, defended last chapter. Even if the most traction came from arguing humanitarian intervention, we all know this was *not* the main reason advanced in the run-up to the war in early 2003. The focus was on pre-emptive self-defence for America; and we effectively called that into question above. The fact that America's real reason in going to war was pre-emptive self-defence, I speculate, probably fuelled things like the Abu-Ghraib prison tortures: the wrong reason attracted the wrong intention, and the perception of self-defence (as opposed to other-rescue) motivated and sharpened the treatment of those prisoners in violation of the principle of benevolent quarantine enshrined in *jus in bello* and the Geneva Conventions.⁴⁹ *Had the real reason and motive behind the war been the rescue of the Iraqi people, such actions would probably not have occurred.* It was the obsession with pre-emptive self-defence, and getting information about any forthcoming terrorist strikes, which produced them.

Second, even if I *were* to agree that the war was an act of armed humanitarian rescue, all that does is satisfy the just cause criterion. But many criticisms can be made of the other *jus ad bellum* criteria—which *all* must be fulfilled—in this case. Questions can notably be raised regarding whether this war was a last resort, whether proper authorization occurred, whether it was a reasonable and proportionate response to the problem of Saddam's tyranny and, above all, whether the war was animated by the right intentions and had decent probability of success in achieving its aim. In terms of right intention, many have raised the issue of a Bush family animus against Saddam, and Iraq's role as a key world oil and gas supplier. Others have said, much like Walzer's criticism of American intentions during Vietnam, that the war was animated not so much by genuine concern for Iraqi well-being as it was by

Iraq's potential strategic role serving as a Trojan Horse for more acceptable values against the new enemy in the New Cold War: militant Islam. In terms of probability of success, the war did admittedly overthrow Saddam. But whether, as a result, it has improved conditions of peace, security and rights realization for ordinary Iraqis is, so far, not entirely evident.

It might even be wondered whether this was a fitting case of armed humanitarian intervention after all. Saddam was a rights-violating tyrant, to be sure, but his regime was still recognized as the government of Iraq by most of the international community. So did his reign truly "shock the conscience of mankind," as Walzer insists we ask? Further, it is not clear that Saddam was violating the rights of other countries during the run-up to the invasion (though admittedly he had certainly done so in the past). The real problem with his regime, in 2003, concerned domestic human rights satisfaction. Here, serious violations must be noticed—no press or political freedoms, discrimination against non-Sunnis and even rapes, kidnappings and killings of political opponents. This might add up to a case that the Iraqi people were, in fact, "enslaved" by Saddam's regime. I admit it very well might; I'm no apologist for Saddam's Stalinesque hold on Iraq and the utter ruin which his long dictatorship brought to that society. At the same time, it does not seem as though Iraq in 2003 was comparable to the huge-scale massacres of Rwanda in 1994, or Khmer Rouge Cambodia in the 1970s—cases which stand out clearly as humanitarian emergencies needing quick and decisive stopping. It is a judgment call, I concede: my only purpose in raising this point is to stress that it *is* a judgment call, and not a crystal-clear observation with which any reasonable observer must agree. Usually, with armed humanitarian intervention, I think, we want to achieve that degree of overwhelming consensus before we authorize force. Obviously, there was no such consensus with Iraq.

I'm on the record, in this book, as declaring that regimes which fail the conditions of minimal justice are not legitimate and thus have no state rights, including the right not to be attacked and overthrown. It seems as though Saddam's regime violated the condition of making every reasonable effort at domestic human rights satisfaction: who doesn't pass that test if he is allowed to pass? So I admit that Saddam's regime had no right not to be attacked. But one can have the right to do something which it is still not wise, or prudent, or smart to do. My overall judgment is that it is deeply questionable whether America's going to war in 2003 was the best way not merely to remove Saddam but also to create pro-rights realization for the Iraqi people. I think the grim post-war situation so far has revealed this. So, last resort and proportionality questions haunt this war, as does the matter of probability of success.

Summary

In this chapter we finished our look at *jus ad bellum* by examining cases not covered by the classical account, such as civil and guerrilla wars, terrorism,

anticipatory attacks and humanitarian rescue. In each case, we detailed reasons for carefully expanding the standard just cause rule to allow for responsible military action. These reasons were, however, kept fundamentally consistent with the essence of just cause, which permits armed force only as resistance to aggression. We suggested, for example, that a regime can commit “internal” aggression against its own people as readily as “external” aggression against foreigners. Non-state actors, like terrorists, can commit aggression, too. It might even, rarely, be consistent with the need to defend people from aggression to make the first strike. Justified military action can be taken in each of the non-standard cases, provided it meets the demanding criteria defended in this chapter, as well as the remaining *jus ad bellum* principles, such as right intention, proper authority, proportionality, and so on.

Case Study: Bosnia

To cap off this chapter, let’s consider the West’s, and particularly America’s, intervention in the Bosnian civil war of 1992–95.⁵⁰ This intervention was both intervention in somebody else’s civil war, as well as an act of humanitarian rescue. Let’s mirror last chapter’s case study by putting this complex, non-standard armed intervention to the test, not only in terms of just cause but of the full complement of *jus ad bellum* principles.

Bosnia was part of Yugoslavia. Conflict broke out in the region after the Cold War ended and communism collapsed in Eastern Europe, in 1989–91. As communists fell, new politicians struggled to influence the development of the post-communist era. Some of these leaders found that appealing to traditional ethnic, religious and nationalist loyalties and identities made them powerful. Amongst the strongest of these new leaders was a Serb named Slobodon Milosevic. Serbs traditionally were the dominant group in Yugoslavia, and they made moves to keep it that way in 1989–91. But the forces of nationalism, ethnicity and religion drove the other groups in Yugoslavia, such as the Croats and Slovenes, to want their own separate states. So they broke away from Yugoslavia in 1991, and there were some battles between the new Croatia and Serb-dominated Yugoslavia. Then trouble erupted in Bosnia, a province right in the heart of the old Yugoslavia. Bosnia was somewhat unique in that it contained a mixture of three large ethnic groups: Croats, Serbs and Muslims. Originally, it looked as though Bosnia might just split into three parts, with the Croat part joining the new Croatia, the Serb part remaining with Serb-dominated Yugoslavia and a Muslim-dominated part to retain the name “Bosnia.” But the deal fell through, partly because of international pressure to stay together, but mainly because the Serbs backed out of the deal. The Serbian army (i.e., the old Yugoslav army) then moved into Bosnia to prevent the separation of Bosnian Croats and Bosnian Muslims. The Bosnian civil war was then on, between Croats (backed by Croatia), Serbs (backed by Serbia) and Muslims (on their own).

Terrible battles ensued and a process of “ethnic cleansing” took place, according to which groups dominant in one area would, through armed coercion, drive minority groups out of that area—leaving them to go “where they belonged” and leaving behind only members of the dominant group. The result? The part of Bosnia beside Croatia became almost exclusively Croat and the part beside Serbia became almost exclusively Serbian. The Muslims were driven into a handful of cities, notably Tuzla, Srebrenica and Sarajevo. The Serb army was very successful during this 1992–94 period, capturing 70 per cent of Bosnia. Milosevic, now president of Serbia proper, said he wanted to keep the new war gains as part of a “Greater Serbia” and he enjoyed very close ties with Bosnian Serb leaders, such as Radovan Karadzic.

JUST CAUSE. The United Nations (UN) had tried early on to intervene in this process, to no positive effect. In 1991, it slapped an arms embargo on all of former Yugoslavia. Still the war raged. In 1992 UN peacekeepers arrived in Bosnia. They were, however, small in number and poorly armed. So poorly armed, in fact, that they were actually taken hostage by the Serb army several times, to be used as bargaining chips with the UN and sometimes as shields against enemy armed forces. Peace negotiations had begun as early as 1991, but the war was not to end until 1995.

America, frustrated at the UN’s impotence—due in some measure to the influence of Russia, a traditional Serb ally—activated the old structure of NATO. America knew that would give them more control. America’s just cause in going to war against Serbia and the Bosnian Serbians revolved around two concepts: the minimally just state and humanitarian intervention. In terms of the first, it was clear that Serbia did not have justice on its side. It was the one who sent in the army, first sparking the war. Moreover, Serbia’s actions during the war showed that it would not impose a just peace. Serbia, under Milosevic, had quickly grown into an ultra-nationalist, authoritarian regime. Like other such regimes in history, it wanted to aggressively increase its territory—into a “Greater Serbia”—and it also acted to purge its own territory of those not part of the ideal ethnic mould. Hence the ethnic cleansing, some of which produced mass graves of Muslim men—the first mass war graves in Europe since The Holocaust. (Admittedly, the other sides engaged in some ethnic cleansing practices as well.) In terms of the second cause, the Serbs showed repeated, and marked, violent aggression against the Bosnian Muslims in particular. Several times in the war, the Serb army deliberately shelled the Muslim-dominated cities, resulting in tens of thousands of civilian casualties. There were also the mass graves noted above, as well as Serb army rape campaigns against Bosnian Muslim women, and torture and starvation of Bosnian Muslim male prisoners of war (POWs), held in Serb concentration camps.

After a particularly bloody Serb shelling of Sarajevo in 1995, NATO under US command intensively bombed both Bosnian Serbia and Serbia

itself. For two weeks, the bombs fell, forcing the Serbs to sign The Dayton Accords, which ended the war. These Accords forced the Serbs to give back land they had conquered, agree to some war crimes trials, and submit to constitutional restructuring—but only in the Serb part of Bosnia, not Serbia itself. (The latter would happen 4–5 years later when Milosevic returned to his ethnic cleansing ways in the Kosovo province of Serbia—this time against ethnic Albanians—forcing NATO into action again, and this time resulting in his overthrow. He was on trial for war crimes, at The Hague in Holland, until his sudden death in March 2006.)

RIGHT INTENTION. Recall that purity of motive is not required here, only that the moral motive actually be present. Whatever else America wanted in intervening, rescuing the Bosnian Muslims from slaughter was clearly on the agenda. Did America want to rub it in the face of Russia, Serbia's traditional ally? Did it want a successful intervention after the failures of Somalia and Rwanda? All these things might be true, but they don't imply failure to meet the condition. America's actions post-war also show that it had no ambitions for controlling Bosnia or Serbia—only preventing slaughter and trying to make institutional changes more conducive to peace.⁵¹

PUBLIC DECLARATION BY PROPER AUTHORITY. America, a minimally just and legitimate state, publicly declared all its plans and intentions (e.g., to switch from the UN to NATO). The Dayton Accords were likewise fully public, and highly profiled. All America's acts were performed through its own appropriate domestic channels as well. But was America the proper authority? The answer seems to be yes—but only by default. The UN did get involved first, but its intervention was ineffective. The Europeans couldn't get their act together sufficiently to perform on their own, in spite of the fact that it was their own backyard. America was willing to act—at least eventually, when all the evidence of Serb misbehaviour and atrocity piled up to the point where it demanded recognition. America then used the NATO infrastructure, which represented a union between North America and Europe working on a common problem, and other countries such as Canada and Britain joined the force. NATO and America may not have been the obvious choice but became the only one after the UN failed and Europe didn't materialize. We must recall Walzer's principle that, when it comes to humanitarian rescue, *any* state (or collection of such) may act, given the prime importance of saving people from slaughter.

LAST RESORT. If anything, America waited too long to act. The events in Bosnia burned warm and hot for nearly four years before decisive action was taken. So this criterion was met—and may show that, for humanitarian interventions any way, certain requirements *of speed and responsiveness* are implied before all is lost. But, as traditionally stated, this rule was obviously

satisfied: multiple negotiations were held; arms embargoes were tried; UN peacekeepers were tried; multiple threats and warnings were issued; and, finally, when the Sarajevo shelling showed the Serbs hadn't changed at all, it was war.

PROBABILITY OF SUCCESS. Serbia might have been a regional power in the Balkans, but it was no match for the United States and NATO. Indeed, it only took two weeks of bombing to bring about surrender. America at the start could have counted on victory, especially since it had learned from Somalia that it had to intervene to win, not just to separate the factions as the UN had failingly attempted. I suppose longer term questions of "success" might be raised, since Milosevic was left in power and another war against his side was necessary four years later regarding Kosovo. That is true, and it highlights the importance of how we should define "success." I think we should leave long-term success for consideration when we reflect on *jus post bellum*, justice after war. When it comes to aiming at success at the start of the war, we need only hold actors to reasonable foresight of the war and its immediate aftermath. In this sense, America could have readily foreseen a successful stop to the slaughter and cleansing, and being able to force a Serb surrender and signature on a reasonable peace agreement in The Dayton Accords.

PROPORTIONALITY. When we see what Milosevic was up to, we can agree with decision-makers at the time that it was proportional to use force. He and his Bosnian Serb cronies were up to aggression, ethnic cleansing, and growing and expanding an ultra-nationalist, authoritarian regime. After they conquered Bosnia, what would be next? The Serbian forces, moreover, conducted themselves with appalling violence—deliberately shelling civilians, starving POWs, and raping women in a systematic way to instil fear and to "reward" themselves. Such a force, morally, had to be stopped. And when it couldn't be stopped with all the other things they tried, it really does seem as if force was the only effective option left. And it turned out better, in the short- and medium term, than what NATO dared hope for—only two weeks worth of bombing, with minimal civilian casualties.

Notes

1. Augustine, *The City of God*, trans. D. Knowles (Harmondsworth: Penguin, 1972), 862.
2. See Appendix A for international law sources.
3. M. Bakunin, *Statism and Anarchy* (Cambridge: Cambridge University Press, 1990).
4. Jim Sterba, ed. *Terrorism and International Justice* (Oxford: Oxford University Press, 2003); Der Spiegel Magazine, *Inside 9/11* (New York: St. Martin's Press, 2002).

5. Some believe, e.g., that the deliberate Allied bombing in 1945 of residential centres in Germany and the atomic bombings of Japan count as acts of terrorism. That would be *democracy's use of terrorism* to serve its ends. While that's very controversial, if you look at the definition it is not totally empty, either. I suppose the issue is whether the intent was to terrorize or, rather, gain revenge. More during the next chapter.
6. Mind you, in the end things turned out badly for Robespierre, getting the guillotine himself. W. Laqueur, *The Age of Terrorism* (Boston: Little Brown, 1987); W. Laqueur, *New Terrorism* (New York: Oxford University Press, 1999).
7. J. Corbin, *Al-Qaeda* (New York: Nation Books, 2002); P. Berman, *Terror and Liberalism* (New York: W.W. Norton, 2003). Thanks to Judy Wubnig for discussions on this.
8. Thanks to an anonymous reviewer, and John Burbidge, for pushing me on this. See also R. Pape's *Dying to Win: The Strategic Logic of Suicide Terrorism* (New York: Random House, 2005). To be crystal clear: as I'll suggest below, terrorism is *always impermissible* but that *doesn't* mean guerrilla warfare is always impermissible. It just rules out one tool that guerrillas have been known to use. We can imagine scenarios where a powerful and unjust aggressor conquers a country and the most effective (indeed, perhaps the only realistic) means of resistance left to the justified victim community is irregular tactics. Such tactics are fine, provided they remain *aimed at the unjust occupier's military forces and not at civilians*.
9. J.B. Eshtain, *Just War Against Terror* (New York: Basic Books, 2003); R. Falk, *The Great Terror War* (New York: Olive Branch Press, 2002).
10. See <www.economist.com/countries/Colombia>.
11. R. Gunaratna, *Inside al-Qaeda* (New York: Berkely Group, 2003).
12. T. Abdullah, *A Short History of Iraq* (Toronto: Pearson, 2003).
13. Gunaratna, *Inside*; Corbin, *Al-Qaeda*.
14. Journalists of Reuters, *The Israeli-Palestinian Conflict* (New York: Reuters, 2002).
15. A. Rashid, *Taliban* (New Haven, CT: Yale University Press, 2001) and M.T. Klare, *Rogue States and Nuclear Outlaws* (New York: Hill and Wang, 1996).
16. M. Walzer, *Just and Unjust Wars* (New York: Basic, 2nd ed., 1991), 74–80. This should especially be noted by those hawkish US commentators already talking up the threat of China to American security—based on speculation of what China might become in 20–50 years.
17. Walzer, *Wars*, 74–85.
18. J. MacMahan, "Preventive War," a chapter in a forthcoming collection on just war theory to be edited by David Rodin and published by Oxford University Press. Thanks to the Press for the advance reading.
19. M. Ignatieff, *The Lesser Evil: Political Ethics in an Age of Terror* (Princeton: Princeton University Press, 2004).
20. *The National Security Strategy of the United States of America*. September 2002, available at <www.whitehouse.gov/nsc/nss.pdf>, p. 15.

21. So I agree with Ignatieff (Note 19) that the post-9/11 era is one where anticipatory attacks might be more permissible but I disagree with him when he says Walzer's criteria are out of date. I always hesitate to agree when people talk about the "dawn of a new age," etc., and the need for completely different principles. Such declarations are too often proven hasty and false. These principles have stood the test of time and can be incorporated into the new risk context.
22. Information for this section comes from W. Murray and R. Scales, Jr. *The Iraq War* (Cambridge, MA: Harvard University Press, 2003); S. Ritter, *War on Iraq* (New York: Profile, 2002); B. Woodward, *Plan of Attack* (New York: Random House, 2004).
23. President George W. Bush, *Public Address*, December 14, 2005. See <www.whitehouse.gov>.
24. *The Congressional Commission Report on the Attacks of 9/11*. (Washington, DC: US Congress, 2004).
25. There was clearer evidence that the Hussein regime provided training camps for members of terrorist groups (such as Hamas) seeking to strike against Israel, and even made a bounty/bereavement payment to families of successful Palestinian suicide bombers.
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 51. Both Bosnia and Serbia are still undergoing complex institutional changes; it is by no means a resoundingly successful “done deal.” Serious challenges remain. For the latest, see <www.bosniapost.com> and <www.serbiapost.com>.